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Checklist of Required Initial Evidence for Form I-140 (for informational purposes only)

Please do not submit this checklist with your Form I-140. The checklist is an optional tool to use as you prepare your form, but does not replace statutory, regulatory, and form instruction requirements. We recommend that you review these requirements before completing and submitting your form. **Do not send original documents unless specifically requested in the form instructions or applicable regulations.** You may view the form instructions [on our Form I-140 page](#).

If you submit any documents (copies or original documents, if requested) in a foreign language, you must include a full English translation along with a certification from the translator verifying that the translation is complete and accurate, and that they are competent to translate from the foreign language into English.

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General Requirements ▼

E-11 Person with Extraordinary Ability in the Sciences, Arts, Education, Business, or Athletics ▼

U.S. Employer Filing for an E-12 Outstanding Professor or Researcher ▼

U.S. Employer Filing for an E-13 Multinational Executive or Manager ▼

E-21 Professional Who Holds an Advanced Degree or Person Who has Exceptional Ability and Seeks a Labor Certification Waiver in the National Interest, Commonly Called a National Interest Waiver (NIW) ▼

E-21 Immigrant Physician Who Seeks a Waiver of the Labor Certification Based Upon Service in a Medically Underserved Area or Veterans Administration (VA) Facility ▼

U.S. Employer (Business or an Individual) Filing for an E-21 Member of the Holding an Advanced Degree or a Person of Exceptional Ability; E-32 Profe ▼



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Skilled Worker; or EW-3 Unskilled (Other) Worker

Person Belonging to a U.S. Professional Athletic Team and is Filing as an E-21 Alien of Exceptional Ability as a Professional Athlete

U.S. Employer Seeking Schedule A, Group I Designation for an E-21 Member of the Professions Holding an Advanced Degree (Physical Therapist), or an E-32 Professional or E-31 Skilled Worker Professional Nurse

U.S. Employer Filing for an E-21 Member of The Professions Holding an Advanced Degree or a Person of Exceptional Ability, or E-32 Professional and are Seeking Schedule A, Group II (Exceptional Ability as Defined by DOL in the Sciences, Arts, And Performing Arts) Certification

U.S. Employer Filing for an EW-3 Unskilled (Other) Worker to Perform Services as a Shepherd without Obtaining a Labor Certification From the Department of Labor First

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Last Reviewed/Updated: 11/06/2024